

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON

Plaintiff,

V.

Amientum Government Services Parent
Holdings LLC,
CLARENCE XANDER, JANICE HUGHES,
HEATHER GUNN, DAKOTA THOMAS,
ELIAS VELASQUEZ, and
YUSEF ABDUL-JAMI,

Defendants.

C.A. No.: 3:25-cv-01447-MCR-ZCB

PLAINTIFF'S MOTION FOR LEAVE TO FILE SIXTH AMENDED
COMPLAINT

I. INTRODUCTION

Plaintiff, Debra Nelson, proceeding *pro se*, respectfully moves this Court for leave to file her **Sixth Amended Complaint** pursuant to **Federal Rule of Civil Procedure 15(a)(2)**.

Plaintiff seeks to amend her complaint to cure technical pleading deficiencies identified by Defense counsel during conferral and to ensure full compliance with this Court's prior Orders regarding speculative claims and shotgun pleadings.

II. BACKGROUND AND PROCEDURAL HISTORY

1. Plaintiff previously filed a Fifth Amended Complaint.

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2. On **January 14, 2026**, Defense counsel, Ms. Lindsay Swiger, contacted Plaintiff via email to request an extension of time to respond to the Fifth Amended Complaint. In that conferral, Defense counsel indicated that Defendants intended to file a Motion to Dismiss because they believed the Fifth Amended Complaint still contained pleading deficiencies.
3. In the interest of judicial economy and to avoid unnecessary motion practice, Plaintiff agreed to the extension but also informed Defense counsel of her intent to cure these defects immediately by filing a **Sixth Amended Complaint**.
4. This Court has previously warned Plaintiff regarding “shotgun pleadings” and claims deemed “speculative,” specifically regarding allegations of cross-case conspiracy. (See Order Doc. 36).

III. ARGUMENT

A. Legal Standard

Federal Rule of Civil Procedure 15(a)(2) provides that the Court “should freely give leave when justice so requires.” The Supreme Court has emphasized that this mandate is to be heeded. *Foman v. Davis*, 371 U.S. 178, 182 (1962). Unless there is a substantial reason to deny leave—such as undue delay, bad faith, or futility—leave to amend should be granted.

B. The Amendment is Necessary to Comply with the Court’s Orders

Plaintiff has carefully revised her complaint to comply with the Court’s guidance. Specifically, the Sixth Amended Complaint: 1. **Removes Speculative Claims:** Plaintiff has voluntarily removed the allegations regarding “cross-case interference” and conspiracy involving Defense counsel, which this Court previously characterized as

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speculative. 2. **Cures Shotgun Pleading Defects:** Plaintiff has ensured that each Count incorporates only the Factual Background section, rather than incorporating all preceding Counts, thereby resolving any “shotgun pleading” issues. 3. **Clarifies Claims:** Plaintiff has specified exactly which Defendant is named in each Count and which factual acts support each claim.

C. The Amendment Promotes Judicial Economy

Allowing this amendment will moot the Defendants’ planned Motion to Dismiss the Fifth Amended Complaint. By presenting a cleaner, more legally compliant pleading now, Plaintiff saves the Court and the parties the time and expense of litigating procedural defects. The Defense will have a clear, operative complaint to answer or otherwise address.

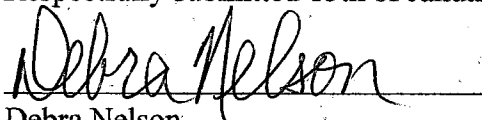
D. Conferral with Opposing Counsel

As noted above, Plaintiff conferred with opposing counsel on January 14, 2026. While Counsel requested an extension to file a Motion to Dismiss the *Fifth* Amended Complaint, Plaintiff submits this *Sixth* Amended Complaint to address the very concerns raised by the Defense.

IV. CONCLUSION

WHEREFORE, Plaintiff respectfully requests that this Court grant her Motion for Leave to File Sixth Amended Complaint and accept the attached Sixth Amended Complaint for filing.

Respectfully submitted 15th of January, 2026,



Debra Nelson
Plaintiff, Pro Se

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **Plaintiff's Motion for Leave to File Sixth Amended Complaint** was served upon counsel for Defendants by email addressed as follows:

Lindsay D. Swiger

Zackary A Blanton

Jackson Lewis P.C.

501 Riverside Avenue, Suite 902

Jacksonville, FL 32202

Email: Lindsay.Swiger@jacksonlewis.com

Zackary.Blanton@jacksonlewis.com

Respectfully submitted 15th of January, 2026,

A handwritten signature in cursive script that reads "Debra Nelson".

Debra Nelson

Plaintiff, Pro Se

